

Defendant Kropp's demurrer to Plaintiff's complaint is sustained with leave to amend. Plaintiff shall file and serve its amended complaint within 10 days of service of the order after hearing.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. The court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-14.

First Cause of Action – Negligence

Defendant argues the complaint fails to allege *how* Defendant caused the fire at issue. The Court agrees.

The elements of a negligence cause of action are: (1) duty, (2) breach of duty; (3) proximate cause; and (4) damages. *Predia v. HR Mobile Services, Inc.* (2018) 25 Cal.App.5th 680, 687. A breach is the failure to meet the standard of care, and the element of causation requires there be a connection between the defendant's breach and the plaintiff's injury. *Coyle v. Historic Mission Inn Corp.* (2018) 24 Cal.App.5th 627, 643.

At bar, the Complaint alleges: a children's ride-on car normally charged in the *northern* quadrant of the garage, using an extension cord plugged into a duplex receptacle *northeast* of the dryer, Complaint 7:1-4 (emphasis added); the extension cord was wrapped on the floor near a pile of Christmas lights in the same quadrant of the garage, Complaint 7:6-8; investigators observed that the upper portion of the duplex receptacle had a white appearance consistent with a power cord having been plugged into it at the time of the fire, but it is unclear which power cord was plugged in, Complaint 7:21-8:2; investigators also observed another overhead receptacle arrangement powered by a yellow extension cord in the *northwestern* wall of the garage, but it is unclear who installed such, Complaint 8:8-22 (emphasis added); the investigation concluded that the area of origin of the fire was on or near the *western* quadrant of the garage, Complaint 9:11-13 (emphasis added); the data gathered determined the initial ignition or heat source of the fire remains unresolved, Complaint 9:16-18; *potential* ignition sources include the lithium-ion or lithium polymer batteries from the car, Complaint 9:21-24 (emphasis added); *potential* fuel sources include the plastic components of the kids car; Complaint 9:27-28 (emphasis added); the

ignition sequence *hypotheses* are either the fire resulted from failure of the car battery generating increased heat until plastic components or other combustible materials reached ignition temperatures, Complaint 10:5-8 (emphasis added); or, “actions of a known or unknown person” using an unidentified ignition source which came into contact with combustible materials, Complaint 10:9-12.

Plaintiff argues the above facts are sufficient to allege Defendant’s breach of duty. The Court is not persuaded. The allegations in the Complaint allege the child’s car and charger was located in the northern quadrant of the garage, and the fire originated in the western quadrant of the garage. The Complaint also states the lithium batteries *could* be the source of the fire, among other things. The Complaint does not explain how Defendant engaged in any wrongful conduct in connection with these batteries or otherwise. Moreover, the allegations in the Complaint make no connection between the findings of the investigation and Defendant’s actions or failure to act, only stating “ [t]he starting of a fire at a property ordinarily does not occur unless there is negligence.” Complaint 11:8-9. Plaintiff has failed to sufficiently allege Defendant’s negligence caused the fire. The demurrer as to the first cause of action is sustained.

Second Cause of Action – Breach of Contract

Defendant argues the Complaint fails to state facts sufficient to constitute a cause of action for breach of contract. The Court agrees.

To state a claim for breach of contract, a plaintiff must allege: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff. *D’Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.

The Complaint alleges the damage to the subject rental property occurred because Defendant failed to keep the property and its fixtures in good working order as required by the contract/lease, and so breached the contract. Complaint 13:21-25. As discussed above, the Complaint fails to allege *how* Defendant failed to maintain the property in a safe and reasonable manner.

Subsection 33 of the lease required Defendant to carry his own renter’s insurance. There are no allegations in the Complaint that Defendant had not obtained insurance; rather it is alleged that Defendant did not force his insurance carrier to pay the claim. Plaintiff has failed to demonstrate how the latter situation, refusal of the carrier to cover the claim, constitutes a breach of the lease by Defendant. The demurrer as to the second cause of action is sustained.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348. The burden is on the plaintiff to show a court a pleading can be amended successfully. *Ibid*.

At bar, Plaintiff asserts it can amend the complaint with additional detail. In light of that representation, leave to amend is granted.

5. CU0001842

Charles Eugene Murdock v. Jodi Michelle Andrews

Defendant Donald Leslie Ringen's motion for stay of case pending conclusion of criminal case against Defendant Jodi Michelle Andrews is denied.

Legal Standard

Pursuant to Code of Civil Procedure § 128(a)(3), every court has the power to provide for the orderly conduct of proceedings, including the power to stay a civil action pending outcome of a related criminal case.

Courts recognize the dilemma faced by a Defendant who must choose between defending the civil litigation by providing testimony that may be incriminating on the one hand, and losing the case by asserting the constitutional right and remaining silent, on the other hand. At the same time, courts must also consider the interests of the Plaintiff in civil litigation where the Defendant is exposed to parallel criminal prosecution. Plaintiffs are entitled to an expeditious and fair resolution of their civil claims without being subjected to unwarranted surprise. Added to the mix, of course, is the interest of the Courts in fairly and expeditiously disposing of civil cases, and in efficiently utilizing judicial resources. Courts that are confronted with a civil Defendant who is exposed to criminal prosecution arising from the same facts weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible. One accommodation is to stay the civil proceeding until disposition of the related criminal prosecution. Another possibility is to... [preclude] a litigant who claims the constitutional privilege against self-incrimination in discovery from waiving the privilege and testifying at trial to matters upon which the privilege had been asserted.

Fuller v. Superior Court (2001) 87 Cal.App.4th 299, 305-307.

'There may be cases where the requirement that a criminal Defendant participate in a civil action, at peril of being denied some portion of his worldly goods, violates concepts of elementary fairness in view of the Defendant's position in an inter-related criminal prosecution. On the other hand, the fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation. The overall interest of the Courts that justice be done may very well require that the compensation and remedy due a civil Plaintiff should not be delayed (and possibly denied). The Court, in its sound discretion, must assess and balance the nature and substantiality of the injustices claimed on either side.' [Citation.]

People v. Coleman (1975) 13 Cal.3d 867, 885.

Under circumstances where the silence of a Defendant is "constitutionally guaranteed, the Court should weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible." *Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690. "While accommodation in this regard is sometimes made to a Defendant in a civil action, it